The Legality of Skill Gaming

Skill-based gaming has a well-established legal, social, and commercial history. From classic board games to major sports tournaments, games of skill have long offered participants a chance to compete based on one's ability. High profile examples of real cash prizes include the PGA tour, where individual tournaments take place in a variety of U.S. states, and the electronic sports (eSports) industry, which lets professional gamers compete in popular video games with real money at stake.

Games built by Supersize have the clear distinction of being games of skill - and not games of chance - a difference which makes Supersize's tournaments legal in the majority of the United States, as well as most countries.

Are Skill-based Tournaments Gambling?

The most widely accepted legal definition of gambling requires three specific things: (1) the award of a prize, (2) paid-in consideration (entrants pay to compete), and (3) an outcome determined by chance. A competition that awards real-cash prizes is not gambling unless all three of the elements are present. Without all three of these elements, a competition that rewards real prizes is not gambling. In the case of Supersize's tournaments, outcomes are not determined by chance, but are rather achieved through a player's skill or ability.

There are two major legal tests used in the U.S. regarding whether something is considered "chance" that would make a game be considered to be gambling. Each test considers the level of chance in a game. These tests are called the "dominant factor test" and the "material element test".

The Predominance Test

The predominance test is the most commonly used indicator of whether a game is skill- or chance-based. Essentially, if chance has more than the majority of the effect of determining a winner or score in a game then a game will fail the dominant factor test. If skill makes up more than the majority, then it will pass the test. As an example, a game such as chess would be almost at the pure skill. On the other hand, traditional slot machines would be pure chance. Between these ends of the spectrum lie many activities containing both elements of skill and chance. A game is classified as a game of skill if the game falls predominantly closer to the skill end of the continuum.

The Material Element Test

The material element test is the second most commonly used test to evaluate whether a game is skill or chance based. The test asks the question of whether chance plays a material role in determining a game's outcome. As an example, in games like Minesweeper, a great deal of skill is generally exercised by players, but there are moments when players are forced to guess at random, with the results of that guess determining the winner and loser of the game. Skill predominates but chance plays a material role in determining the game's outcome.

How does Supersize ensure games are skill-based?

All Supersize games are designed such that a skilled player will have a consistent advantage over a non-skilled competitor. Supersize has developed a sophisticated shared-seed randomness engine which guarantees that matched players always compete under identical game conditions.

In practice, each match is generated from a single gameplay seed that is fixed before either player makes a move, and both players in the match receive the same seed. That gives both players the same starting conditions: the same deck in the same order in Solitaire and 21 Solitaire, the same sequence of pieces in Block Puzzle, the same tile board in Triple Tile, and the same starting board in 2048, Match 3 and Bubble Shooter, with new tiles and bubbles drawn from the same predetermined random sequence. Neither player starts with an advantage, and the conditions each player faces change only in response to that player's own moves. Because the game logic is deterministic, two players who make the same decisions in the same order will finish with exactly the same score. The player with the higher score wins, and equal scores result in a draw.

Applying the Predominance Test

Under the predominance (dominant factor) test, the question is whether skill or chance is the dominant factor in determining who wins. In a Supersize match, the random elements are shared by both players, so they cannot be what separates the winner from the loser. What differs between the two players is how they play: the decisions they make, the strategies they adopt, and how quickly and accurately they carry them out. Each game also requires many decisions over a timed session, so a player's score reflects the combined quality of all of those choices rather than any single event. For example, the outcome of a match turns on:

- **Solitaire:** planning the order of moves, deciding which face-down cards to work toward, and judging when to recycle the stock or take a new deal, under scoring that rewards revealing cards and building foundations and penalizes recycling and new deals.
- **21 Solitaire:** choosing which of four lanes each card goes into to make 21s and build scoring streaks while avoiding busts, with a bonus for clearing the deck quickly.
- **2048:** choosing the direction of each move to set up merges, where every merge scores the value of the new tile.
- **Block Puzzle:** choosing which of three offered pieces to place, and where, to clear lines and keep a scoring streak alive.
- **Bubble Shooter:** aiming each shot, including bank shots off the walls, to pop and drop groups of bubbles and clear each wave quickly.
- **Match 3:** choosing swaps within a limited number of moves to create cascades and special pieces and to complete goals that earn extra moves.
- **Triple Tile:** choosing which uncovered tile to send to a seven-slot tray and managing tray space to form triples. Every board can be fully cleared with perfect play.
- **Farm Wars:** taking turns with an automated opponent to place fences around plots, where the fence that closes off a plot claims it, so players must choose fences that set up their own captures without handing plots to the opponent. Finishing a wave with more plots than the opponent earns a bonus.

Because the result of every match turns on these skills, skill and not chance is the dominant factor in determining the winner, and Supersize's games fall at the skill end of the continuum described above.

Applying the Material Element Test

The material element test asks a narrower question: even if skill predominates, does chance still play a material role in the outcome? Supersize's head-to-head format is designed to answer that question as well. A match is decided by comparing two players' scores on the same seed, so randomness that both players face equally does not decide between them. At most, it is an incidental feature of the game environment that both players must navigate.

This is the key difference from the Minesweeper example above, where a forced guess can decide who wins and who loses. In a Supersize match, whatever uncertainty a game involves, such as face-down cards in Solitaire or upcoming pieces in Block Puzzle, is the same for both players and is managed through strategy, such as keeping options open and planning ahead. Scores build up across the whole game, so no single uncertain moment determines the result, and a player who matched their opponent's decisions would match their opponent's score.

Supersize does not add chance anywhere else in the contest. Entry fees, prizes and scoring rules are fixed and published before a player enters. Scores are calculated by the game logic from each player's moves rather than reported by the player's device, and there are no random bonuses, prize draws or other luck-based rewards.

Conclusion

Supersize's games satisfy both tests. Under the predominance test, skill is the dominant factor because the shared seed removes chance as a point of difference between players and leaves their decisions and execution to determine the winner. Under the material element test, chance does not play a material role because any random element is fixed in advance, shared by both players, and secondary to the many skill-based decisions that determine each score. Supersize's games are therefore games of skill rather than games of chance. Because the third element of gambling, an outcome determined by chance, is absent, Supersize's skill-based tournaments are not gambling.